

SENATE No. 1022**The Commonwealth of Massachusetts**

PRESENTED BY:

Pavel M. Payano

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to maintain stable housing for families with pets.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Pavel M. Payano</i>	<i>First Essex</i>	
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/3/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>2/3/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/6/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/21/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/21/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/25/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/11/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/11/2025</i>
<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	<i>4/24/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/29/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>4/29/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>6/25/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>7/9/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>7/29/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>10/20/2025</i>

SENATE No. 1022

By Mr. Payano, a petition (accompanied by bill, Senate, No. 1022) of Pavel M. Payano, Sal N. DiDomenico, Michael O. Moore, Michael D. Brady and other members of the General Court for legislation to maintain stable housing for families with pets. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to maintain stable housing for families with pets.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding chapter 186 or 239 of the General Laws or any general or
2 special law, rule, regulation or order to the contrary, no landlord shall initiate action to evict any
3 person from a residential dwelling unit who has a pet without written permission based solely on
4 the presence of the pet until one year after a state of emergency, unless the presence of pets is
5 causing harm to the safety of other residents.

6 SECTION 2. No hotel, as defined in section 12A of chapter 140, shall unreasonably
7 refuse to allow pets during a state of emergency unless the pet has caused a demonstrated noise
8 or safety threat.

9 SECTION 3. Section 12 of chapter 183A of the General Laws, as appearing in the 2022
10 Official Edition, is hereby amended by inserting, after the words “master deed”, in subsection
11 (d), the following words:-

However, no provision in the declaration, bylaws or rules and regulations of the organization of unit owners shall prohibit the keeping of certain types of dogs based on breed, size, weight or appearance.

SECTION 4. Section 1 of chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after subsection (xvii) the following subsection:-

(xviii) establish, conduct and maintain a program of pet ownership by residents of state-aided public housing.

SECTION 5. Chapter 186 of the General Laws is hereby amended by inserting after section 31 following section:-

Section 32. A housing provider may require a tenant to pay additional rent for common household pets; provided that:

(a) The amount of the additional rent charged for each household pet that is a dog may not exceed 1 percent of the first full month's rent charged to that tenant for the dwelling unit per common household pet.

(b) The amount of additional rent charge for all other common household pets may not cumulatively exceed 1 percent of the first full month's rent charged to the tenant for the dwelling unit.

(c) No additional rent for household pets may be required for a service or assistance animal required by a tenant with a disability as a reasonable accommodation under state or federal law.

SECTION 6. Chapter 175 of the General Laws is hereby by amended by inserting after section 230 the following section:-

Section 231. An insurance company offering homeowners insurance coverage or renters insurance coverage that issues a policy or contract insuring against liability for injury to a person or injury to or destruction of property arising out of the ownership or lease of residential property shall not refuse to issue, renew, cancel, or charge or impose an increased premium or rate of such a policy or contract based in whole or in part upon the harboring of a specific breed of the dog upon the property.

An insurance company may not ask or inquire about the breed or mixture of breeds of a dog that is harbored or owner on an applicable property except to ask if the dog is known to be dangerous or has been designated a dangerous dog pursuant to law.

Nothing in this section shall prohibit an insurer from refusing to issue or renew or from canceling a contract or policy or from imposing an increased premium or rate for a policy or contract if any dog being harbored on the property has been designated as a dangerous dog pursuant to law.

SECTION 7. Section 32 of chapter 121B of the General Laws, is hereby amended by inserting the after subsection (i) the following paragraph:-

In determining whether an applicant is eligible for tenancy in a property or if a current tenant can remain in a property, no property owned, managed or operated by an authority may make such a determination based on the breed, size, weight or appearance of a dog owned or cared for by the applicant or household member.

54 SECTION 8. SECTION 5 shall take effect with new leases beginning 6 months of later
55 after the effective date of this act.